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Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.48034 of 2025

Khawaja Muhammad Asif and 07 others

Versus

Province of Punjab, through Secretary Transport and others

JUDGMENT

Date of hearing	17.10.2025
Petitioners by:	M/s Ch. Naseer Ahmad Bhutta, Imran-ul-Haq Bhatti and Hashim Ali Bhutta, Advocates.
Respondents by:	Mr. Omer Farooq Khan, Assistant Advocate General, Punjab with Khalid Iqbal, Law Officer Transport Department. Mr. Mazhar Amin Chaudhary, Advocate for respondent No.5.

RAHEEL KAMRAN, J.: Through this petition in terms of Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (hereinafter, ‘the Constitution’) the petitioners have prayed: -

“Under the above made submissions, it is, therefore, most respectfully prayed that the impugned orders dated 22.7.2025 & 22.8.2025 passed by the respondent No.1 Secretary Punjab Provincial Transport Authority, Lahore may kindly be set aside “to the extent of Revocation” and be declared as having been passed illegally without lawful authority and of no legal effect. It is further prayed that during the pendency of the instant writ petition the operation of the impugned order dated 22.7.20225 to the extent of revocation may kindly be suspended till the final disposal of the instant petition. Any other relief under the circumstances to which the appellant is found entitled may also be granted by this Hon’ble Court.”

2. The brief background of the matter is that a D-Class Bus Stand Licence No. 11/D/1995 dated 28.06.1995 was issued in the joint names of petitioner No.1 Khawaja Muhammad Asif and his father Khawaja Muhammad Yousaf (deceased), in respect of land bearing Khasra No.90, Chak No.220/RB, Tehsil and District Faisalabad, where they were conducting business under the name and style of *M/s Khawaja Travel Service, Jhang*

Road, Faisalabad. The licence had been renewed from time to time, up to 31.12.2025, upon applications submitted by petitioner No.1 as his father had passed away in the year 1997. The controversy arose when upon an application dated 12.11.2021 for renewal, respondent No.2 the Regional Transport Authority, Faisalabad (RTA) required petitioner No.1 through letter dated 29.04.2022, to (i) regularize certain alterations or modifications in the building plan through the competent forum, (ii) resolve the issue of partition among co-sharers and (iii) submit the renewal application jointly through all legal heirs of the late Khawaja Muhammad Yousaf or through a duly authorized representative since the proprietary rights in the licence were to devolve upon all legal heirs of the deceased. During the meeting of the RTA on 03.08.2024, it was decided to apportion the share of the deceased licensee amongst his legal heirs and to record statements of any heirs wishing to transfer their share in favour of another. Accordingly, order was passed on 08.08.2024 by the Chairman Regional Transport Authority, Faisalabad. In the said order, it was observed that one of the partners in licence, namely Khawaja Muhammad Yousaf (father of the present petitioners and respondent No.5) had died and licence of dead person cannot be renewed but it was being renewed erroneously and that now a dispute has arisen among the real sons of Late Khawaja Muhammad Yousaf. The licence was ultimately renewed upto 31.12.2025. It may be noted that when the matter was before Regional Transport Authority, Faisalabad, all the other legal heirs of Khawaja Muhammad Yousaf, except respondent No.5 Khawaja Muhammad Arif, expressed no objection to renewal of the licence in favour of petitioner No.1. Respondent No.5, however, objected on the ground that he too was a co-owner in the land and, therefore, no renewal could lawfully be made without the consent of all shareholders. He preferred an appeal before respondent No.1 (the Secretary, Provincial Transport Authority), who, by way of the impugned order dated 22.07.2025, revoked the licence altogether, observing that the licence had continued in the name of a deceased person without lawful transfer and that the dispute among heirs rendered the arrangement untenable.

3. Learned counsel for the petitioners contended that the impugned order dated 22.07.2025 suffers from gross illegality and procedural

impropriety. It was argued that the petitioners, being legal heirs of late Khawaja Muhammad Yousaf, are collectively entitled to continuation of the licence as a matter of succession and that the mere existence of a dispute among heirs regarding partition of land could not, in itself, justify revocation of the licence. Learned counsel submitted that the RTA had, after due deliberation, lawfully renewed the licence up to 31.12.2025 and that the Provincial Transport Authority exceeded its jurisdiction by setting aside that renewal without affording adequate opportunity of hearing to all parties. It was further argued that the impugned order overlooks the settled principle of continuity in commercial licensing, whereby the right to operate a licensed business passes to legal heirs, subject to compliance with administrative formalities. The petitioners emphasized that the land in question continues to be jointly owned and that the business was being run peacefully for decades without any incident of law and order, thus the apprehension expressed in the impugned order is speculative. It was prayed that the revocation of licence be declared void and of no legal effect.

4. Conversely, learned counsel for respondent No.5 supported the impugned order, arguing that the renewal of licence in the name of a deceased person constitutes a clear violation of law and administrative propriety. He submitted that petitioner No.1, without consent of all co-sharers, unilaterally sought renewal, thereby encroaching upon the lawful rights of respondent No.5, who holds an undivided share in both the land and the business. It was contended that such unilateral actions cannot confer exclusive benefit upon one heir at the expense of others, particularly when the property is unpartitioned. He further submitted that the Regional Transport Authority was not competent to adjudicate or determine proprietary rights among co-heirs and that, due to the admitted dispute regarding ownership, the Provincial Transport Authority rightly revoked the licence to prevent further complications. Learned counsel maintained that public transport facilities involve safety and security considerations and continuation of a disputed licence could endanger public peace and administrative order.

5. Learned Assistant Advocate General representing the official respondents, endorsed the stance of respondent No.5 and defended the impugned order. He contended that the licensing authorities are empowered

under law to ensure that all statutory and administrative requirements are strictly fulfilled and that no licence can subsist in the name of a deceased person. He emphasized that renewal of a licence does not confer proprietary title and must be based upon clear, undisputed entitlement. Since the dispute over ownership and succession was pending and unresolved, the decision of the Provincial Transport Authority to revoke the licence was lawful and justified in the interest of public order and administrative integrity.

6. Heard. Record perused.

7. For a proper resolution of the controversy, it is necessary to refer to the statutory framework. Licence No.11/D/95 was issued under Rule 253 of the Motor Vehicles Rules, 1969 (hereinafter, “the Rules, 1969”). The proviso to Rule 253(2) *ibid* is of particular significance: “*no place which is privately owned shall be notified as a Stand unless the application is made by the owner of that place.*” This inextricably links the entitlement to hold a recognized stand to the ownership or lawful control of the land in question.

8. The legal character of the licence must also be underscored. A licence is merely a permission to do something which would otherwise be unlawful. It is a privilege¹, not a property right. Licence in question, therefore, never created a vested, indefeasible or permanent right in favour of the petitioners. Consequently, upon the death of one of the original licensees, Khawaja Muhammad Yousaf, the licence did not automatically devolve upon his legal heirs as a heritable right².

9. Rule 266 of the Rules, 1969 is also relevant to the case in hand. The plain language of Rule 266(1) *ibid* confers upon the Regional Transport Authority a broad regulatory power to revoke an order permitting establishment of a stand where conditions of the order have been breached, management is unsatisfactory or its continuance would not be in the public interest. These are regulatory, not proprietary, powers; their exercise is concerned with the proper administration and management of public vehicle stands in the interest of the travelling public and public order. It is evident that the licence in question was issued and periodically renewed in circumstances

¹ *Government of Pakistan, through Secretary, Ministry of Commerce and another v. Zamir Ahmad Khan* (PLD 1975 SC 667)

² *Mrs. Akhtar Jan v. Government of Pakistan and another* (1982 SCMR 1134)

where (a) one of the original licensees had passed away; (b) the underlying land which formed the basis for the stand remains joint and unpartitioned among legal heirs; and (c) at least one co-owner (respondent No.5) expressly objected to renewal. When the proviso to Rule 253 of the Rules, 1969 is read together with Rule 266, a clear picture emerges that a privately owned place must be the subject of an application by the owner (or by those lawfully entitled) and, if that foundational condition is disputed, the competent authority is entitled to take regulatory steps (including revocation) to prevent the continuance of a concession that may aggravate disputes, endanger public order or amount to administrative impropriety.

10. In the above legal and factual backdrop, the impugned order of revocation falls within the Authority's regulatory power. The Transport Authority correctly identified the defect of the licence continuing in a deceased person's name and the untenability of the arrangement due to the ownership dispute. It surely is not the province of the licensing authority to adjudicate the proprietary rights among the heirs. Such disputes are for the civil court to resolve. The petitioners' remedy, therefore, lies in seeking a determination of their respective shares before the civil court. Upon obtaining a decree or settlement that establishes a clear and undisputed entitlement, they may apply afresh for a licence in accordance with law.

11. For the foregoing reasons, the instant petition is dismissed being without merit.

(RAHEEL KAMRAN)
JUDGE

Announced in the open Court on _____

JUDGE